ADVERTISING SERVICES AGREEMENT

This Advertising Services Agreement (the **"Agreement"**) is made and entered into on **July 18, 2026** by and between:

RYE CHINTZY CIMENI, of legal age, Filipino, with address at **Camella Homes, Bool, Tagbilaran City, Bohol**, referred to in this Agreement as the **"Client"**;

and

KEVIN RHOLETTE ALLEGO, of legal age, Filipino, with address at **Happy Homes, Basak, Lapu-Lapu City, Cebu**, referred to in this Agreement as the **"Advertiser"**.

The Client and the Advertiser are individually a **"Party"** and collectively the **"Parties."**

1. ENGAGEMENT

The Client engages the Advertiser to manage Meta advertising for the seven businesses listed below, and the Advertiser accepts the engagement subject to this Agreement:

1. Patron Pub
2. Awi Samgyupsal Buffet
3. KapeHuan Takoma
4. Iwayan Beach Resort
5. AYO Fast Food - UB
6. KapeHuan Alona
7. Iwa Hotel

The services cover Meta ad account `act_1497567440403737` and the Facebook Pages connected to the businesses above.

2. TERM

The Agreement has a fixed lock-in term of three months, beginning **July 20, 2026** and ending **October 20, 2026**.

The Advertiser will begin work after all of the following have been completed:

- This Agreement has been signed.
- The first payment has cleared.
- The Client has provided the required Page access, business information, and available creative materials.

Any delay in access, approvals, information, or payment may move the delivery schedule without extending the Advertiser's obligations beyond the agreed scope.

3. SCOPE OF SERVICES

3.1 Meta Advertising Management

The Advertiser will:

- Manage campaigns, ad sets, ads, audiences, budgets, placements, schedules, optimization settings, and exclusions.
- Organize campaigns and naming conventions by business, funnel stage, audience, objective, offer, and date where appropriate.
- Retain and use proven Facebook post IDs when strategically appropriate.
- Build or maintain top-of-funnel, middle-of-funnel, bottom-of-funnel, and retention structures where the available budget and audience size justify them.
- Monitor delivery, spend, frequency, audience overlap, creative fatigue, and cost trends.
- Maintain, test, reduce, pause, repair, or scale advertising based on available data and agreed business priorities.

- Reallocate approved media budgets among campaigns for the same business without requiring approval for every routine adjustment, provided the Advertiser does not exceed the Client's approved total media budget.

3.2 Creative Testing

The Advertiser will produce up to **five new static image concepts per month across the portfolio**, with **one standard-size adaptation per approved concept**.

The Advertiser will also provide the corresponding primary text, headline, description, and call to action where required for the advertisement.

Unused monthly creative allocations do not automatically carry over to a later month. Revisions are limited to reasonable corrections or adjustments to an approved concept. A new direction, offer, or concept will count as a new concept.

3.3 Audience Development

The Advertiser may create and manage business-specific cold, warm, high-intent, and customer audiences using data and platform access lawfully supplied by the Client.

Audiences for separate businesses will remain segmented unless the Client approves cross-brand targeting or the Advertiser reasonably determines that a shared audience test serves the approved strategy.

3.4 Reporting and Strategy

The Advertiser will:

- Provide access to a real-time advertising dashboard, subject to the availability of the reporting platform and Meta data.
- Provide one weekly written update identifying what is working, what has potential, and what is not working.
- Conduct review calls when mutually agreed by the Parties.
- Provide advertising, offer, customer-journey, and business-growth recommendations based on available information.

Recommendations are advisory. The Client remains responsible for deciding whether and how to implement operational or business changes outside the advertising scope.

4. SERVICES NOT INCLUDED

Unless the Parties approve a separate written scope and fee, the following are not included:

- Lead handling, inbox responses, sales follow-up, reservation processing, and customer service
- Organic social media management or daily posting
- Comment moderation and community management
- Professional photography, video production, animation, talent, props, or location production
- Website, landing-page, booking-system, or CRM development
- Influencer management
- Google Ads, TikTok Ads, or advertising platforms other than Meta
- Google Business Profile management
- Printing, travel, paid stock assets, or third-party software fees
- Legal, accounting, tax, or regulatory advice

5. PROFESSIONAL FEE

The regular management fee is **PHP 10,000 per business per month**.

As a negotiated portfolio arrangement, the Advertiser will charge for six businesses and include management of the seventh business at no additional professional fee. The fixed professional fee is therefore:

PHP 60,000 per month for all seven businesses

The complimentary inclusion applies only while all seven businesses are managed as one portfolio under this Agreement. It has no cash value, is not refundable, and cannot be exchanged for additional creative production, another service, or a credit. The total professional fee remains PHP 60,000 per month during the lock-in term even if the Client temporarily pauses campaigns for one or more businesses.

Any additional business added beyond the seven listed in Section 1 will require written approval and will be billed at **PHP 10,000 per business per month**, unless the Parties agree otherwise in writing.

6. PAYMENT TERMS

The monthly professional fee will be paid in two equal installments:

- **PHP 30,000** at the beginning of each service month
- **PHP 30,000** as the second installment on the applicable date listed in the billing schedule below

The proposed billing schedule is:

Due date	Description	Amount
July 20, 2026	Month 1 initial installment	PHP 30,000
August 5, 2026	Month 1 final installment	PHP 30,000
August 20, 2026	Month 2 initial installment	PHP 30,000
September 5, 2026	Month 2 final installment	PHP 30,000
September 20, 2026	Month 3 initial installment	PHP 30,000
October 5, 2026	Month 3 final installment	PHP 30,000

Payments will be made through **bank transfer or online wallet transfer** to the payment details stated on the Advertiser's invoice.

The Advertiser will issue the appropriate invoice or receipt consistent with the Advertiser's tax registration. If the Client is legally required to withhold creditable tax, the Client will:

- Deduct only the amount required by applicable law.
- Remit the withheld amount to the Bureau of Internal Revenue within the required period.
- Provide the Advertiser with the applicable BIR withholding tax certificate promptly.

The Parties should confirm the correct tax treatment with their respective accountants because the withholding rate and invoicing treatment depend on the Parties' registration and tax circumstances.

7. LATE PAYMENT AND SUSPENSION

If a payment remains unpaid for three calendar days after its due date, the Advertiser may suspend work and campaign management after giving written notice through Messenger or email.

During suspension:

- The Advertiser is not responsible for changes in campaign delivery, performance, account status, or media spending.
- Delivery dates may be moved by the length of the suspension.
- The Client remains responsible for fees due under the three-month lock-in term.

The Advertiser may resume work after all overdue amounts have cleared.

8. META ADVERTISING SPEND AND THIRD-PARTY COSTS

The professional fee does not include Meta advertising spend.

The Client will:

- Pay Meta advertising charges directly through the ad account's payment method.
- Maintain sufficient funds and a valid payment method.
- Approve the total daily or monthly media budget for each business.
- Pay approved third-party costs separately.

The Advertiser will not increase the Client's total approved media budget without written approval. Routine reallocations within an approved total budget are allowed under Section 3.1.

9. CLIENT RESPONSIBILITIES

The Client will:

- Appoint one primary decision-maker.
- Use Messenger as the primary communication channel.
- Provide Page access and maintain the Advertiser's required access during the term. Ad-account access has already been provided as of the drafting of this Agreement.
- Review requests for campaign, offer, and creative approval within 24 to 48 hours.
- Provide accurate offers, prices, operating hours, locations, booking instructions, restrictions, availability, and other business information.
- Notify the Advertiser promptly of closures, sold-out products, unavailable rooms, capacity limits, pricing changes, and other material operational changes.
- Provide usable brand assets, photos, videos, menus, testimonials with proper permission, and product or service information.
- Handle all inquiries, leads, bookings, reservations, customer service, and sales follow-up.
- Provide a complete and reasonably accurate weekly report for each business containing: gross revenue; number of transactions, bookings, or reservations; and customer-source survey results.
- Consistently ask customers how they first discovered the business and share aggregated results with the Advertiser.
- Ensure that the advertised products, services, offers, claims, and business practices comply with applicable law and platform policy.

The Client will not offer gifts, discounts, free products, or services in exchange for Google reviews. Any customer reward program must be separate from a requirement to submit, change, or remove a public review.

10. APPROVALS

The Client is responsible for the final accuracy and legality of approved advertising claims, prices, offers, terms, images, testimonials, and other client-supplied materials.

Approval may be given through Messenger, email, the dashboard, or another written electronic channel used by the Parties.

If the Client does not respond to an approval request, the Advertiser may retain the existing campaign setup, delay the affected launch, or use previously approved information. Silence will not be treated as approval of a materially new offer or claim.

11. NO GUARANTEE OF RESULTS

The Advertiser will perform the services with reasonable professional care but does not guarantee:

- A specific number of leads, reservations, sales, purchases, or customers
- A specific return on advertising spend or revenue amount
- Continuous Meta account, Page, campaign, or ad approval
- Uninterrupted platform or dashboard availability
- That historical results will continue

Performance may be affected by market demand, competition, seasonality, media budget, pricing, offers, creative quality, platform changes, account restrictions, response time, customer service, business capacity, and the accuracy of tracking and revenue data.

12. OWNERSHIP AND USE OF MATERIALS

The Client retains ownership of its Pages, ad account, trademarks, logos, customer data, existing posts, and materials supplied to the Advertiser.

Upon full payment of all amounts due, the Client may continue using final approved advertising images and copy created specifically under this Agreement. The Advertiser retains ownership of pre-existing materials, templates, working files, systems, dashboards, processes, methods, know-how, and unselected concepts.

The Client grants the Advertiser a limited license during the term to use the Client's names, logos, images, videos, offers, and other materials only as reasonably needed to perform the services.

The Advertiser may not publicly use the Client's confidential performance or revenue data as a case study without the Client's written approval. The Advertiser may request permission to display non-confidential final work in a portfolio.

13. CONFIDENTIALITY

Each Party will keep confidential all non-public business, financial, customer, advertising, access, pricing, and operational information received from the other Party.

Confidential information may be used only to perform or receive the services. It may be disclosed only to personnel or service providers who need it for that purpose and are subject to appropriate confidentiality obligations, or when disclosure is required by law.

This obligation survives the end of the Agreement for two years. Access credentials and personal data must remain protected for as long as they are retained.

14. DATA PRIVACY

The Client is the personal information controller for customer and prospect data supplied or made accessible for advertising. The Advertiser will process such data only as needed to provide the services and according to the Client's lawful instructions.

The Parties will comply with Republic Act No. 10173, its implementing rules, and applicable issuances of the National Privacy Commission. In particular:

- The Client will ensure it has a lawful basis and appropriate notices for data used in advertising, customer lists, surveys, and audience creation.
- The Advertiser will not use personal data for an unrelated independent purpose.
- Each Party will use reasonable organizational, physical, and technical safeguards appropriate to the data it handles.
- The Advertiser will limit access to persons and service providers reasonably needed to perform the services.
- The Advertiser will notify the Client without unreasonable delay after discovering a material personal-data security incident connected to the services.
- At the end of the engagement, the Advertiser will return, delete, or securely dispose of Client personal data under the Advertiser's control, except where retention is required by law or reasonably necessary for legal records.

The Parties will execute a more detailed data-processing addendum if the Client supplies customer lists or gives the Advertiser routine access to identifiable customer records beyond ordinary Meta advertising access.

15. PLATFORM ACCESS AND SECURITY

The Client will provide partner or role-based access whenever available instead of sharing personal passwords.

Each Party is responsible for securing its own devices, accounts, authentication methods, and personnel access. The Client should promptly remove former staff and unauthorized users from its business assets.

The Advertiser will not be responsible for unauthorized access caused by the Client's compromised credentials, devices, personnel, or failure to maintain appropriate access controls.

16. INDEPENDENT CONTRACTOR

The Advertiser is an independent contractor and not an employee, agent, partner, or joint venturer of the Client. The Advertiser controls the manner and means of performing the services, subject to the agreed scope, approved budget, and Client instructions.

The Advertiser has no authority to bind the Client to a contract or obligation with a third party unless the Client gives written authority.

17. EARLY TERMINATION

This Agreement has a fixed three-month term. If the Client ends the engagement without a breach by the Advertiser, pauses all businesses, removes required access, or stops providing required information, the unpaid professional fees for the full three-month term will remain due.

Either Party may end this Agreement if the other Party seriously fails to follow it and:

1. The affected Party sends written notice explaining the problem; and
2. The other Party does not correct the problem within ten calendar days after receiving the notice, when correction is reasonably possible.

The Advertiser may end this Agreement immediately if the Client requests unlawful, fraudulent, deceptive, or platform-prohibited activity; seriously misuses access; makes threats; engages in harassment; or creates a serious legal, financial, security, or reputational risk.

If the Advertiser ends the Agreement without a breach by the Client, the Client will pay only for services completed up to the termination date. Any prepaid but unearned professional fee will be refunded proportionately.

Payment, ownership, confidentiality, data privacy, liability, dispute resolution, and other terms that need to continue will remain effective after the Agreement ends.

18. LIMITATION OF LIABILITY

To the maximum extent permitted by Philippine law, neither Party will be liable to the other for indirect, incidental, special, exemplary, or consequential damages, including lost profits or lost business opportunities, arising from this Agreement.

Except for fraud, willful misconduct, breach of confidentiality, data-privacy obligations, infringement of intellectual property rights, or unpaid fees, each Party's aggregate liability arising from this Agreement will not exceed the professional fees actually paid or payable for the three-month term.

Nothing in this Agreement excludes liability that cannot lawfully be excluded or limited.

19. FORCE MAJEURE

Neither Party will be liable for delay or failure caused by events beyond its reasonable control, including natural disasters, fire, war, civil disturbance, government action, widespread internet or power failure, severe platform outage, or similar events.

The affected Party will notify the other Party as soon as reasonably possible and will make reasonable efforts to resume performance. Payment obligations already due are not excused by this section.

20. NOTICES

Routine approvals and operational communications may be sent through Messenger.

Formal notices concerning breach, suspension, termination, or legal claims must be sent through Messenger and to the following email addresses:

- Client: **lagaparyechintzy@gmail.com**
- Advertiser: **kevinrholette@gmail.com**

A Party must promptly notify the other Party of a change in its contact details.

21. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement is governed by the laws of the Republic of the Philippines.

Before filing a court action, the Parties will first attempt in good faith to resolve the dispute through written discussion within fifteen calendar days after a formal dispute notice. If unresolved, the Parties will attempt mediation through a mutually acceptable mediator in **Tagbilaran City**, with the mediation cost shared equally unless otherwise agreed.

If mediation does not resolve the dispute, the Parties agree that the proper courts of **Tagbilaran City**, Philippines will have exclusive venue, subject to applicable law.

22. ELECTRONIC DOCUMENTS AND SIGNATURES

The Parties agree that this Agreement may be signed in counterparts and through reliable electronic signatures or electronic documents. A signed PDF or electronically signed copy may be treated as an original, subject to applicable Philippine law.

23. GENERAL PROVISIONS

- **Entire agreement.** This Agreement and its written attachments contain the entire agreement between the Parties regarding the services and replace prior discussions or proposals on the same subject.
- **Amendments.** Any amendment must be in writing and accepted by both Parties.
- **Assignment.** Neither Party may assign this Agreement without the other Party's written consent, except to a lawful successor to substantially all of its relevant business.
- **Severability.** If a provision is held invalid or unenforceable, the remaining provisions will continue in effect, and the invalid provision will be adjusted only as much as legally necessary.
- **No waiver.** A Party's delay in enforcing a right is not a waiver of that right.
- **Headings.** Headings are for convenience and do not control interpretation.

24. SIGNATURES

The Parties confirm that they have read, understood, and voluntarily accepted this Agreement.

CLIENT

RYE CHINTZY CIMENI
Printed name of Client

Signature: _____

Date: _____

Government ID presented: _____

ADVERTISER

KEVIN RHOLETTE ALLEGO
Printed name of Advertiser

Signature: _____

Date: _____

Government ID presented: _____

SIGNED IN THE PRESENCE OF

Witness 1 name: _____

Signature: _____

Witness 2 name: _____

Signature: _____

NOTARIAL ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)
_____) S.S.

BEFORE ME, a Notary Public for and in _____, personally appeared:

Name	**Government identification**	**Date/place issued**
_____	_____	_____
_____	_____	_____

They are known to me and to me known to be the same persons who executed the foregoing Advertising Services Agreement, consisting of **_____ pages including this acknowledgment page**, and they acknowledged that the same is their free and voluntary act and deed.

WITNESS MY HAND AND SEAL on _____ at _____, Philippines.

Notary Public: _____

Doc. No. _____
Page No. _____
Book No. _____
Series of _____